

The First 90 Days

An executor's working notebook for the weeks after a parent dies. What to do, in what order, what not to do yet, and the scripts and letters you will need along the way.

72

hours: the short list that protects the estate before you can think straight

5

mistakes that make executors personally liable, and how to not make them

20

trackers, phone scripts and letters you can fill in and use today

Read this page first

You did not sign up for this. Somebody trusted you with it, and now there is a pile of mail on a kitchen table and everyone is asking you questions you cannot answer yet. This notebook exists so you do not have to figure out the order of things while grieving.

What this is

A sequence. The first 90 days after a death have a shape: a short emergency list, then a week of securing and locating, then a month of getting yourself legally appointed and opening the estate, then the long middle where the deadlines live. Each part has a checklist with the reason next to every item, because you will make better decisions when you know why.

It is also a set of tools. Trackers for the things that get lost (death certificates, phone calls, mail, receipts). Scripts for the phone calls that make people freeze. Letters you can copy. A one-page "do not do this yet" list you should tape to the refrigerator.

What this is not

It is not a law book, and it does not replace one. Probate is state law. The words change (executor, personal representative, administrator), the dollar limits change, the deadlines change. Where a rule depends on your state, this notebook gives you the general shape and tells you exactly where to verify: the probate court for the county where your parent lived, and your state court's self-help website. Both are free.

A note on the word "executor." If there was a will and it named you, you are the executor (in some states, "personal representative"). If there was no will, the court appoints an "administrator," and the job is nearly identical. This notebook uses "executor" throughout. If your parent's assets were in a living trust, the "successor trustee" does a similar job without the court; most of this notebook still applies, and the probate sections mostly do not.

How to use it

- Print it, or open it on a tablet. Every tracker is meant to be written on.
- Work in order. The parts are sequenced on purpose. Skipping ahead is how estates get into trouble.
- When an item says *Why*, read it. The why is what lets you handle the situations this notebook cannot predict.
- Keep every receipt. Start today. Page 26 tells you why that matters more than you think.

One promise

Almost nothing in the first 90 days is as urgent as the people around you will make it feel. Bills can wait for the estate to open. Siblings can wait for an inventory. The only things that cannot wait are on the 72-hour list. Do those, then breathe.

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The five ways executors get personally burned

An executor is a fiduciary. That word means you can be made to pay, out of your own pocket, for losses the estate suffers because of something you did or failed to do. Most executors never face this. The ones who do almost always made one of these five mistakes.

1. Paying people too early

A sibling wants "their share" now. A cousin wants the car. A beneficiary wants a check. If you distribute assets and a valid creditor claim or tax bill shows up later, the estate may not have money to pay it, and the shortfall can land on you. Nothing goes to beneficiaries until the creditor claim window has closed and taxes are settled or reserved for. That is months away. Say so, kindly, and keep saying it.

2. Mixing money

Never deposit an estate check into your own account, even for a day, even "to keep it safe." Never pay an estate bill from your own card without a receipt and a reimbursement entry. Commingling is the single most common thing beneficiaries sue over, because it looks like theft even when it was not. Open an estate account as soon as you are appointed (Part Three) and run everything through it.

3. Missing a deadline you did not know existed

Filing the will with the court (many states: within 30 days). Publishing notice to creditors. Filing the inventory. The final income tax return. The estate income tax return. Each has a clock. Miss one and the estate can lose the right to reject a stale claim, or pick up penalties, and the beneficiaries can look to you. The deadline calendar on page 27 exists for this.

4. Spending benefit overpayments

Social Security pays in arrears and does not pay for the month of death. If a deposit lands after the death, it will be clawed back. Pensions and annuities do the same. If that money has been spent, you replace it. Leave post-death deposits alone until each payer confirms what it wants back.

5. Playing favorites

Paying the creditor who shouts loudest, selling the house to a friend below market, letting one sibling clear out the garage before the inventory is done. Executors owe every beneficiary the same duty of impartiality. Document decisions, price things at fair market value, and when family is involved, get a written valuation you can point to.

The plain-English test. Before any money moves, ask: "If a beneficiary saw this on a bank statement in a year, would it look fair, documented and in order?" If not, do not do it yet.

The first 72 hours

Only what protects people, animals, property and the paper trail. Everything else waits.

- ☐ **Get the legal pronouncement and choose a funeral home.**
Why: the funeral home files the death certificate and, in most cases, notifies Social Security for you. Ask them to confirm they will.
- ☐ **Order death certificates: 10 to 15 certified copies.**
Why: banks, insurers, brokerages, the DMV, pension plans and the court each want one, and many keep it. Ordering later means weeks of delay. Cost is usually \$10 to \$25 per copy depending on the state. Track them on the next page.
- ☐ **Make sure anyone dependent on your parent is cared for: children, an adult with disabilities, a surviving spouse, pets.**
Why: pets are the most commonly forgotten item on every executor list. Go to the house.
- ☐ **Secure the home.** Lock it, collect spare keys from neighbors and cleaners, bring in the mail, check the stove and taps, set the thermostat.
Why: an empty house with an obituary in the paper is a target. Obituaries are read by burglars. Do not list the address or the service time if you can avoid it.
- ☐ **Find the original will, and any trust documents.** Look in the desk, the safe, the freezer, the file cabinet, the attorney's office, the bank safe-deposit box.
Why: you cannot be appointed without it, and many states require the original to be lodged with the court within 30 days.
- ☐ **Do not throw anything away.** Not the mail, not the junk drawer, not the shoebox of receipts.
Why: the paperwork you need to find every account is in that mess. The tax return alone lists every bank, brokerage and pension that paid interest or income.
- ☐ **Start a folder and a notebook.** Every call, every name, every date. Use the call log in Section 6.
Why: you will speak to forty people this month and remember none of them.
- ☐ **Tell the people who need to know, and ask one person to be the communicator.**
Why: you cannot field forty phone calls and also do this job. Delegate the phone tree.
- ☐ **Check for a prepaid funeral plan or burial insurance before paying for anything.**
Why: it is common, it is often forgotten, and the estate reimburses reasonable funeral costs anyway, so keep receipts.
- ☐ **If your parent was a veteran, tell the funeral home.**
Why: burial benefits, a flag, and possibly a plot at a national cemetery. The funeral home knows the forms.

What you do not have to do this week: notify the bank, cancel the credit cards, pay any bill, call the lawyer, tell the siblings what they are getting, or decide anything about the house. See Section 5.

Death certificates: the copy tracker

Certified copies are the currency of this job. Some institutions accept a photocopy or a scan; many will not, and several will keep the original you send. Log each one so you know when to reorder.

COPIES ORDERED _____

ORDERED FROM (FUNERAL HOME / VITAL RECORDS) _____

DATE RECEIVED _____

COST PER COPY _____

#	SENT TO	DATE	CERTIFIED OR COPY?	RETURNED? / NOTES
1				
2				
3				
4				
5				
6				
7				
8				
9				
10				
11				
12				
13				
14				
15				

WHO USUALLY WANTS A CERTIFIED COPY

Each bank and credit union · each brokerage and retirement plan · each life insurance policy · the pension administrator · the probate court · the DMV (for each vehicle) · the county recorder (for real estate) · Social Security (if the funeral home did not report) · the VA · the credit bureaus (one of them; see Section 10) · annuity companies · the mortgage servicer · the employer's HR department.

Week one: secure and locate

The goal this week is to know what exists and to make sure nothing leaks. You are not settling anything yet. You are building the map.

Secure

- ☐ **Call the homeowner's insurer.** Tell them the owner died and the house may be unoccupied.
Why: most policies treat a house as "vacant" after 30 to 60 days and then exclude or void claims. Ask what endorsement or vacancy policy they need and by when. Write the answer in the call log.
- ☐ **Keep utilities on. Do not cancel yet.** Transfer nothing yet either.
Why: a dark, unheated house is a burst-pipe and mold problem. In winter keep the heat at 55°F minimum. You will move utilities into the estate's name after you are appointed.
- ☐ **Photograph every room, every drawer, the garage, the safe, the jewelry.** Date-stamped, before anyone else visits.
Why: this is your inventory baseline and your protection if anything "goes missing."
- ☐ **Remove or lock away cash, jewelry, firearms, medication, and documents.** Log what you moved and where.
Why: controlled substances and firearms have their own rules. Do not sell or give away a firearm without checking state law.
- ☐ **Vehicles: locate titles and keys, keep insurance active, do not let anyone drive them.**
Why: if an uninsured family member crashes the estate's car, the estate (and possibly you) carry it.
- ☐ **Redirect the mail.** Collect it daily for now. Formal forwarding requires the post office to see your appointment paperwork, in person, on PS Form 3575, so that comes in Part Three.
Why: mail is how you discover accounts. Log it in Section 12.

Locate

- ☐ **Original will, codicils, trust documents, letters of instruction.**
- ☐ **Last two years of tax returns.**
Why: Section 13 shows you how to read them as a map of every account.
- ☐ **Bank and brokerage statements, retirement plan statements, insurance policies, annuity contracts.**
- ☐ **Deeds, mortgage statements, vehicle titles, property tax bills.**
- ☐ **Marriage certificate, divorce decree, military discharge papers (DD-214), birth certificate, Social Security number.**
- ☐ **Safe-deposit box location and key.**
Why: access rules vary; many banks will let you inspect for a will with a death certificate but not remove contents until you are appointed.
- ☐ **Prepaid funeral contract, burial plot deed.**
- ☐ **Passwords: a written list, a password manager, the phone passcode.**
Why: the phone is the key to two-factor codes for nearly every account. Do not let the carrier cancel the line. Keep it paid.
- ☐ **Business interests, partnership agreements, rental leases, storage units.**

Do not do this yet

Tape this to the refrigerator. When someone pushes you to act, point at it.

DO NOT	UNTIL	BECAUSE
Pay any bill from your own money	The estate account exists, or you have a receipt and a reimbursement log entry	Commingling. Also, some debts die with the person or are the estate's problem, not yours.
Pay credit cards, medical bills or personal loans at all	The creditor claim window has run and you know the estate is solvent	If the estate cannot pay everyone, state law sets the order. Paying the wrong one first can make you liable for the difference.
Give anyone anything: the car, the ring, the piano, "their share"	Debts and taxes are settled or reserved for, and the court (if any) has approved distribution	Early distributions are the classic executor lawsuit. Sentimental items are still estate property.
Close the bank accounts	You are appointed and have an estate account to move the money into	Closing accounts freezes the paper trail and can stop automatic payments (insurance!) you still need.
Cancel the phone, email or internet	Every account that uses that phone number for two-factor codes has been located and changed	Lose the number and you lose access to everything behind it.
Sell, list or rent the house	You are appointed, the deed situation is understood, and you have a date-of-death appraisal	You may not have authority to sign. The appraisal sets the tax basis for the heirs and protects you from "you sold it cheap" claims.
Let family "clear out" the house	Photographs and the inventory are done	Once something leaves, you cannot prove what was there.
Cash any check made out to your parent	The estate account exists	You cannot legally endorse it, and the bank will bounce it back later.
Spend Social Security, pension or annuity deposits that arrived after the death	Each payer has confirmed what is owed back	Those payments are clawed back. If spent, you replace them.
Post the address or funeral time publicly	Never, if you can avoid it	Empty houses get robbed during services.
Hire the first lawyer who calls, or sign a percentage-fee agreement	You have read Section 20	You may not need one. If you do, hourly or flat fee is usually cheaper than a percentage of the estate.
Tell beneficiaries what they will receive or when	You have an inventory and a debt picture	Every number you say out loud becomes a promise. Say "I will send an update on the 1st of each month" instead.

Call log

[illegible]

Weeks two to four: do you need probate, and getting appointed

Being named in a will gives you no power. The court does, with a document called *Letters Testamentary* (with a will) or *Letters of Administration* (without). Until you hold Letters, banks will not talk to you.

Step 1. Sort the assets into three piles

PILE	WHAT GOES HERE	WHAT HAPPENS TO IT
A. Passes by beneficiary designation	Life insurance, IRAs, 401(k)s, annuities, "payable on death" and "transfer on death" accounts and deeds	Goes to the named person with a death certificate and a claim form. Not probate. Still counts for taxes.
B. Passes by ownership	Joint accounts with survivorship, jointly owned house with a surviving spouse, assets held in a living trust	Goes to the co-owner or is handled by the trustee. Not probate.
C. Everything else	Sole-name accounts with no beneficiary, a house in their name alone, vehicles, personal property, refunds, final paychecks	The probate estate. Its size decides which path you take.

Step 2. Check whether pile C qualifies as a "small estate"

Every state has a shortcut for modest estates: an affidavit or simplified procedure that skips most of formal probate. The limit runs from about \$15,000 to over \$200,000 by state, usually counts only pile C, and often excludes real estate. The next page gives a starting figure; verify it with the court, since several states index it yearly.

- ☐ Total pile C using date-of-death values (statement balances, a realtor's opinion for the house, Kelley Blue Book for cars).
- ☐ Compare to your state's limit. If under, ask the clerk which small-estate form to use and the waiting period (often 30 to 45 days).
- ☐ If over, or if there is real estate in your parent's name alone in a state that excludes it, you are opening a probate case.

Step 3. Open the case and get appointed

- ☐ **File the original will with the probate court** in the county where your parent lived. Many states require this within 30 days, even if no probate is needed.
- ☐ **File the petition for probate** (name varies). The clerk and the state self-help site have the forms. Fees run roughly \$50 to \$500.
- ☐ **Notify heirs and beneficiaries** of the filing as the court requires. Some states hold a hearing; some let the clerk appoint you "informally."
- ☐ **Bond:** if the will did not waive it, the court may require one. Beneficiaries can often sign a waiver.
- ☐ **Receive Letters.** Order 5 to 10 certified copies; institutions want one dated within the last 60 days, so reorder later rather than stockpiling.

Step 4. The day you have Letters, do these four things

- ☐ **Get an EIN for the estate** at [irs.gov](https://www.irs.gov) (free, ten minutes, entity type "Estate"). Never use your parent's Social Security number for estate business again.
- ☐ **Open an estate checking account** with the EIN and Letters. Every estate dollar in or out goes through it from now on.
- ☐ **File IRS Form 56** so IRS mail about your parent comes to you.
- ☐ **Go to the post office** with Letters and ID and file PS Form 3575 to forward the mail.

State quick reference

Starting points only. Limits are for the small-estate affidavit or simplified procedure, generally counting personal property in the decedent's sole name. Several states raise the figure yearly and several treat real estate separately. **Confirm the current number with the probate clerk in the county where your parent lived, or your state court's self-help site, before relying on it.** Creditor windows run from publication of notice or from the date Letters issue; ask the clerk which applies.

STATE	SMALL-ESTATE LIMIT (APPROX., 2026)	CREDITOR CLAIM WINDOW (TYPICAL)	STATE	SMALL-ESTATE LIMIT (APPROX., 2026)	CREDITOR CLAIM WINDOW (TYPICAL)
Arizona	\$75,000 personal / \$100,000 real (recently raised; verify)	4 months from publication	Missouri	\$40,000	6 months from publication
California	\$239,700 (deaths on/after Apr 1 2026)	4 months from Letters	Nevada	\$25,000 (\$100,000 spouse)	90 days from publication
Colorado	~\$86,000 (indexed yearly)	4 months from publication	New Jersey	\$50,000 spouse / \$20,000 other	9 months from death
Connecticut	\$40,000	150 days from appointment	New York	\$50,000	7 months from Letters
Florida	\$75,000 (summary administration)	3 months from publication	North Carolina	\$20,000 (\$30,000 spouse)	3 months from publication
Georgia	No formal affidavit; "no administration necessary" petition	3 months from publication	Ohio	\$35,000 (\$100,000 to spouse)	6 months from death
Illinois	\$100,000	6 months from publication	Oregon	\$75,000 personal / \$200,000 real	4 months from publication
Indiana	\$100,000	3 months from publication	Pennsylvania	\$50,000	1 year from publication
Maryland	\$50,000 (\$100,000 spouse)	6 months from death	Tennessee	\$50,000	4 months from publication
Massachusetts	\$25,000 (voluntary administration)	1 year from death	Texas	\$75,000	Publish within 1 month of Letters; 4 months for unsecured claims after notice
Michigan	~\$29,000 (indexed yearly)	4 months from publication	Virginia	\$50,000	No fixed bar; 1 year "safe" period commonly used
Minnesota	\$75,000	4 months from publication	Washington	\$100,000	4 months from publication
Wisconsin	\$50,000	3 to 4 months, set by court	All other states	Search "[state] small estate affidavit" on your state court's official site (ends in .gov or .us), or ask the probate clerk.	

MY STATE _____ COURT PHONE _____ CLERK _____

CONFIRMED LIMIT _____ CONFIRMED WINDOW _____ DATE CONFIRMED _____

Where to verify: the National Center for State Courts keeps a directory of state self-help sites (ncsc.org). Search "[state] judicial branch self help probate." Never rely on a form from a site that sells you the form.

Phone scripts

Read these out loud if you need to. Have the death certificate, your Letters if you have them, and your parent's Social Security number, date of birth and date of death in front of you. Ask for the deceased-accounts department; the general line will transfer you five times.

BANK OR CREDIT UNION · BEFORE YOU HAVE LETTERS

"Hello. I'm calling about an account holder who has died. I'm their child and the named executor, but I have not been appointed by the court yet. I'd like to do three things today: put a deceased notation on the accounts so nothing new is opened, confirm the account types and whether any have a payable-on-death beneficiary, and find out exactly what documents you will need from me to access them once I'm appointed. Can you also tell me the date-of-death balance on each account, or how to request it in writing?"

BANK · AFTER YOU HAVE LETTERS

"I'm the court-appointed executor for the estate of [name]. I have certified Letters and a death certificate. I'd like to open an estate checking account under the estate's EIN, and then transfer the balance of the decedent's sole-name accounts into it. Please tell me whether you need originals or copies, and whether I need an appointment."

CREDIT CARD COMPANY

"I'm calling to report that the cardholder has died on [date]. Please close the account to new charges, stop any paper statements to the home, and send a written statement of the balance as of the date of death to me as executor at [address]. I am not agreeing to pay this balance personally; claims should be submitted to the estate." *Do not give your own card number. Do not agree to "just keep it current."*

SOCIAL SECURITY · 1-800-772-1213

"I'm calling about [name], Social Security number [number], who died on [date]. I want to confirm the death has been reported, confirm whether any payment made after the date of death needs to be returned and how, and ask whether a surviving spouse or dependent child is eligible for the lump-sum death payment or survivor benefits." *The \$255 lump sum goes to a spouse who lived with them, or in some cases a child. It must be claimed within two years.*

UTILITY COMPANY

"The account holder died on [date]. I'm the executor. Please do not disconnect service; the house needs to stay heated and insured. Address bills to 'The Estate of [name], c/o [you]' at [address]. Once I have court Letters I'll transfer or close the account and tell you which."

LIFE INSURANCE OR ANNUITY COMPANY

"I'm calling about a policy on [name], who died on [date]. Please confirm the policy is in force, tell me who the named beneficiary is and what claim forms and documents are needed, and send a claim packet to [address]. If the beneficiary is the estate, I'm the executor and will provide Letters."

HOMEOWNER'S INSURER

"The insured died on [date] and the house may be unoccupied for a while. I want to keep coverage in force. What is your vacancy rule, what endorsement do you need, and should the policy move into the estate's name? Please note me as the executor contact."

Letters you can copy

Send by certified mail with return receipt, keep a copy, and log it. Enclose a photocopy of the death certificate unless the recipient insists on certified.

Credit bureau deceased notice

You only need to notify one bureau; it shares the notice with the others. Sending to one is enough, sending to all three is fine. Addresses are on each bureau's website under "deceased" or "report a death."

[Date]

[Bureau name], Deceased Notification / Office of Consumer Affairs

[Address from the bureau's website]

Re: Notice of death of _____ (Social Security number _____, date of birth _____)

To whom it may concern:

I am writing to notify you that the above-named consumer died on _____. I am the [executor / personal representative / administrator] of the estate. A copy of the death certificate and my Letters are enclosed.

Please place a "Deceased — Do Not Issue Credit" indicator on the file and send me a copy of the current credit report so that I can identify open accounts and creditors of the estate.

Sincerely,

[Your name], as [title] of the Estate of _____

[Your mailing address · phone · email]

Enclosures: death certificate (copy), Letters (copy), copy of my photo ID

Letters you can copy

Notice to a known creditor and request for date-of-death balance

[Date]

[Creditor name], Estates or Deceased Accounts Department

[Address]

Re: Account ending _____ · Estate of _____ · date of death _____

I am the [executor / personal representative] of the above estate. A copy of the death certificate and my Letters are enclosed. Please (1) close the account to further activity, (2) send a written statement of the balance as of the date of death, including any interest and fees, and (3) direct all future correspondence to me at the address below.

Any claim against the estate must be presented in writing to me as the estate's representative [and filed with the probate court as required by state law]. This letter is not a promise to pay and is not an admission that the debt is valid. Please do not contact any family member regarding this account.

Sincerely,

[Your name], as [title] of the Estate of _____

[Your mailing address · phone · email]

The "do not contact family" line matters. Federal debt-collection rules limit whom a collector may contact about a deceased person's debts, and they are easier to enforce once you have said in writing where claims go.

Request for date-of-death values from a brokerage or retirement plan

[Date] · [Institution], Estate Services · [Address]

Re: Account(s) ending _____ · _____, deceased _____

I am the [executor / personal representative] of the above estate (Letters and death certificate enclosed). Please send (1) a statement of each account's value as of the date of death, listing each holding and its closing price that day, (2) the name of any designated beneficiary on each account, and (3) the forms required to retitle or transfer the account. Please direct all correspondence to me at the address below.

Sincerely, _____ [Your name], as [title] of the Estate of _____

The house

An empty house is the most expensive thing an estate owns. It costs money every month, it can lose its insurance, and it is where family conflict happens. Treat it like a job site.

FIRST VISIT

- ☐ Photograph every room before touching anything
- ☐ Change or rekey the locks; log who has keys
- ☐ Check for water leaks, gas smell, pests
- ☐ Empty the fridge; run the dishwasher; take out trash
- ☐ Water plants or remove them
- ☐ Collect mail, newspapers, packages; stop deliveries
- ☐ Find the water shutoff and breaker box
- ☐ Note the thermostat setting (55°F minimum in winter)
- ☐ Remove cash, jewelry, firearms, medication, documents; log it
- ☐ Look for a home safe, a hidden key, a fireproof box

WITHIN TWO WEEKS

- ☐ Insurer notified; vacancy rule written down
- ☐ Mortgage servicer notified; payments kept current from estate funds once possible
- ☐ Property tax due date written on the calendar
- ☐ Lawn or snow service arranged; a neighbor asked to watch
- ☐ Timer lights set; a car in the driveway if possible
- ☐ Security system: code changed, monitoring kept on
- ☐ Vehicles: titles located, insurance kept, no drivers
- ☐ Pets rehomed with a written note of who has them

BEFORE ANYONE TAKES ANYTHING

- ☐ Inventory of personal property done (Section 14)
- ☐ Anything of real value appraised or priced
- ☐ Will checked for specific gifts ("my ring to Anna")
- ☐ Beneficiaries told, in writing, how personal items will be divided (Section 18)

BEFORE LISTING OR SELLING

- ☐ You hold Letters, or the small-estate procedure clearly covers real estate in your state
- ☐ Date-of-death appraisal by a licensed appraiser, in writing
- ☐ Deed checked: sole name, joint, trust, or transfer-on-death?
- ☐ Court approval obtained if your state requires it for sales
- ☐ Beneficiaries informed of the plan and the price

Why the appraisal matters twice. Heirs generally receive inherited property with a tax basis "stepped up" to its value on the date of death. A written appraisal fixes that number, which can save the heirs real money when they sell later, and it protects you against any claim that you sold below value.

INSURER VACANCY DEADLINE _____

MORTGAGE SERVICER / DUE DATE _____

PROPERTY TAX DUE _____

WHO HAS KEYS _____

Mail log

Every envelope is a lead. Statements reveal accounts. Bills reveal creditors. Refund checks reveal assets. Log the sender and what it means; do not act on it yet unless it is on the 72-hour list.

[illegible]

Finding everything: the tax return is the map

You will not find every account by searching drawers. You will find them by reading the last tax return line by line. Every institution that paid your parent money in the last year is on it.

ON THE RETURN	WHAT IT TELLS YOU	THEN
Form 1099-INT	Every bank, credit union and CD that paid interest	Call each one (Section 9 script)
Form 1099-DIV, 1099-B	Every brokerage and mutual fund	Request date-of-death values
Form 1099-R	Pensions, IRAs, annuities, 401(k) withdrawals	Ask who the beneficiary is; these usually skip probate
Form SSA-1099	Social Security amount	Confirm the death was reported
Schedule A (itemized)	Mortgage interest (lender), property taxes (county), charitable gifts	Notify lender; note tax due dates
Schedule B	A list of every payer of interest and dividends	This is your account list
Schedule C, E, K-1	A business, rental property, partnership or trust income	Get a CPA involved early
Form 1098	Mortgage servicer and loan number	Notify; keep paying once the estate can
Preparer's name	The accountant who has the prior years	Call them. They often know about assets you don't.

Other places accounts hide

- **The credit report** you requested with the deceased notice: every open loan and card.
- **Unclaimed property:** search missingmoney.com and your state controller's unclaimed property site for your parent's name, and their old addresses. Old utility deposits, forgotten accounts, uncashed checks. Free.
- **Life insurance:** the NAIC Life Insurance Policy Locator (free) asks participating insurers to search for policies on a deceased person.
- **Old employers:** pensions and 401(k)s from jobs decades ago. The Pension Benefit Guaranty Corporation runs a search for unclaimed pensions.
- **The phone and email:** search the inbox for "statement," "account," "your balance," "policy." Section 15.
- **Safe-deposit box:** the key, the bank, the box number. Ask the bank what they require to open it.
- **Savings bonds:** TreasuryDirect has a search for lost paper bonds.
- **Vehicles, boats, trailers:** the state DMV can list titled vehicles.

Inventory: assets

Use date-of-death values. Mark how each asset passes (Section 7: A by beneficiary, B by ownership, C probate). Print more copies.

BANK, CREDIT UNION, CASH

INSTITUTION & LAST 4	TYPE	SOLE / JOINT / POD	DATE-OF-DEATH BALANCE	A/B/C	STATUS

INVESTMENT, RETIREMENT, ANNUITIES

INSTITUTION & LAST 4	TYPE (IRA, 401K, BROKERAGE)	BENEFICIARY NAMED?	DATE-OF-DEATH VALUE	A/B/C	STATUS

LIFE INSURANCE

COMPANY & POLICY #	FACE AMOUNT	BENEFICIARY	CLAIM FILED / PAID	A/B/C	STATUS

REAL ESTATE

ADDRESS	HOW TITLED	MORTGAGE BALANCE	APPRAISED VALUE & DATE	A/B/C	STATUS

VEHICLES, PERSONAL PROPERTY OF VALUE, BUSINESS INTERESTS, MONEY OWED TO YOUR PARENT

ITEM	WHERE	TITLE / PROOF	VALUE & HOW DETERMINED	A/B/C	STATUS

Inventory: debts and ongoing bills

List everything, including debts you think die with the person. Do not pay any of them yet (Section 5). Mark secured debts (mortgage, car loan) because those get handled differently from unsecured ones (cards, medical).

CREDITOR & LAST 4	SECURED?	BALANCE AT DEATH	NOTIFIED (DATE)	CLAIM FILED?	NOTES

RECURRING BILLS TO KEEP, TRANSFER OR CANCEL

SERVICE	AMOUNT / MONTH	PAID FROM	KEEP / TRANSFER / CANCEL	DONE	NOTES
Electric					
Gas / heating oil					
Water / sewer / trash					
Mobile phone (keep for 2FA)					
Internet / cable					
Homeowner's insurance					
Auto insurance					
Mortgage / HOA					
Medicare / supplemental / long-term care					
Subscriptions, memberships, streaming					
Storage unit					

Debts that usually do not pass to you personally: credit cards, medical bills and personal loans in your parent's sole name are claims against the estate, not against the children. If the estate runs out, they generally go unpaid. Exceptions: debts you co-signed, joint accounts, and in some states, certain medical debts of a spouse. If a collector says you must pay, ask them to put the legal basis in writing.

Digital accounts

The phone is the master key. Nearly every account sends its security codes there. Keep the line active and the phone charged until the last account is handled.

ACCOUNT	WHAT TO DO	WHAT YOU WILL NEED
iPhone / iCloud	If your parent set a Legacy Contact, that person requests access at digital-legacy.apple.com. If not, Apple can be asked to remove Activation Lock or delete the account with a death certificate; data access without a Legacy Contact usually requires a court order.	Access key (if Legacy Contact), death certificate
Google / Gmail / Photos	If Inactive Account Manager was set up, the trusted contact is notified automatically. Otherwise submit a request through Google's "deceased user" form; expect limited results.	Death certificate, your ID, proof of relationship
Facebook / Instagram	Request memorialization (the profile stays, marked "Remembering") or deletion. A pre-named Legacy Contact can manage the memorial.	Death certificate or obituary link
Password manager	Look for 1Password, Bitwarden, LastPass, or the browser's saved passwords. Some have emergency-access features that notify a designated person after a waiting period.	Master password, or the emergency contact
Email	Before closing anything, search it for statements, invoices, policies and subscriptions. It is your second map after the tax return.	Access via the phone or saved login
Subscriptions	Check the App Store and Google Play subscription lists, PayPal, and the credit card statements. Cancel after the account inventory is complete.	Card statements
Crypto	Look for exchange emails (Coinbase, Kraken), hardware wallets, seed phrases written on paper or metal. Do not move anything until you understand what it is and what it is worth. It is an estate asset with a tax basis like any other.	Seed phrase, exchange login, 2FA device
Airline miles, hotel points, store credit	Policies vary; some transfer to heirs on request with a death certificate. Ask before closing.	Account numbers

DIGITAL INVENTORY

ACCOUNT / DEVICE	LOGIN / WHERE STORED	PLAN (KEEP, MEMORIALIZE, CLOSE)	DONE / NOTES

Days 30 to 90: the long middle begins

By now you should hold Letters, have an EIN and an estate account, and know roughly what exists. The next 60 days are about deadlines and paper. Nothing is distributed yet.

Creditors

- ☐ **Publish the notice to creditors** in the newspaper the court specifies, on your state's schedule. Keep the affidavit of publication.
Why: publication starts the clock. Claims filed after the window closes can usually be rejected.
- ☐ **Mail written notice to every known creditor** (Section 10 letter). Some states require it; all courts prefer it.
- ☐ **Log every claim received** with the date. Do not pay. Check each against the statements. Dispute what is wrong, in writing.
- ☐ **If the estate might not cover everything**, stop and get advice. State law sets the order: administration costs, funeral costs, taxes, then the rest. Paying out of order is personal liability.

Inventory and valuation

- ☐ **File the estate inventory with the court** by your state's deadline (commonly 60 to 90 days after appointment).
- ☐ **Get written date-of-death values:** bank letters, brokerage statements, a licensed appraisal for real estate, a dealer or guide value for vehicles, an appraiser for jewelry, art, collections.
- ☐ **Move sole-name accounts into the estate account.** Deposit refund checks and final paychecks there. Never into yours.

Taxes: the four returns to know about

RETURN	WHEN IT APPLIES	DUE
Final Form 1040	Always, if your parent had to file. Covers January 1 to the date of death. Write "Deceased" and the date at the top; you sign as personal representative. Attach Form 1310 if a refund is due to the estate.	April 15 of the year after death (same extensions as usual)
Form 1041 (estate income tax)	If the estate earns \$600 or more in gross income after death (interest, dividends, rent, a gain on selling the house).	April 15 of the following year for a calendar-year estate; you may elect a fiscal year
Form 706 (federal estate tax)	Only if the gross estate exceeds the federal exemption (\$15 million per person for 2026). Also filed, optionally, to pass unused exemption to a surviving spouse ("portability").	9 months after death, 6-month extension available
State estate or inheritance tax	A minority of states have one, with much lower thresholds (some under \$2 million). Check your state.	Usually 9 months after death

Two things a CPA will tell you in the first meeting. Medical expenses paid within a year after death can be deducted on the final 1040 instead of the estate return, which is often better. And if the house or securities sold near their date-of-death value, the estate has little or no gain because of the stepped-up basis. Both need the date-of-death values you gathered above.

Tax deadline sheet

DATE OF DEATH _____	FINAL 1040 DUE _____
ESTATE EIN _____	FORM 1041 NEEDED? DUE _____
FORM 56 FILED (DATE) _____	FORM 706 NEEDED? DUE (9 MO.) _____
CPA / PREPARER _____	STATE ESTATE/INHERITANCE TAX? DUE _____
PRIOR-YEAR RETURN LOCATED? _____	PROPERTY TAX DUE _____

DOCUMENTS TO COLLECT FOR THE PREPARER

- ☐ Prior year's federal and state returns
- ☐ All 1099s and W-2s for the year of death (they will arrive in January and February; the mail forwarding matters here)
- ☐ Date-of-death statements for every account
- ☐ Real estate appraisal
- ☐ Closing statements for anything sold
- ☐ Medical bills paid in the last year and after death
- ☐ Funeral and administration expenses (deductible on 706 or 1041 in some cases, not on the 1040)
- ☐ Estate account statements showing income earned after death
- ☐ Letters and the EIN confirmation notice

NOTES FOR THE PREPARER

Beneficiaries and family

Over 44% of executors report family conflict during settlement. Most of it comes from silence, not from the will. People fill a vacuum with suspicion. Fill it with a schedule instead.

Your actual duties to them

- Keep them informed about what the estate holds, what it owes and how it is going.
- Treat them impartially. Same information to everyone, at the same time.
- Account for every dollar. At the end, most states require a formal accounting; many beneficiaries can demand one at any time.
- Act with reasonable care and no self-dealing. If you want to buy the house, get it appraised and tell everyone.

The monthly update: send it on the same day every month

Subject: [Parent's name] estate · update for [Month]

Hi everyone,

Here is where things stand as of [date]. I'll send the next one on [date].

Done this month: [e.g., Letters issued on the 12th; estate account opened; notice to creditors published on the 20th; house insurer notified and vacancy endorsement added.]

What the estate holds (so far, date-of-death values): [bank accounts approx. \$X; brokerage approx. \$X; the house, appraisal ordered; two vehicles.] I'll attach the full inventory once it is filed with the court.

What the estate owes (so far): [mortgage, one credit card, final medical bills. Creditor window closes on [date]; nothing can be distributed before then.]

Next month: [appraisal, inventory filing, final tax return prep.]

What I need from you: [e.g., nothing; or, please send me your mailing address and a photo of your ID for the court forms.]

I know this is slow. The order of steps is set by law, and distributions come last so that nobody has to give money back later. If you have questions, reply here so everyone sees the same answer.

[Your name]

Beneficiary and heir contact sheet

The court will ask for names and addresses of all heirs at law (the people who would inherit without a will) as well as the beneficiaries named in the will, even if they are the same people.

NAME	RELATIONSHIP	ADDRESS · PHONE · EMAIL	NAMED IN WILL? / HEIR AT LAW?	NOTICES SENT (DATES)

SPECIFIC GIFTS NAMED IN THE WILL

ITEM OR AMOUNT	TO	LOCATED? / DELIVERED (DATE)

Dividing personal things without a fight

Anything the will names goes to that person. For the rest, pick a method, announce it in writing before anyone chooses, and stick to it:

1. **Rotating picks.** Draw for order, then pick one item each in turn, reversing order each round. Works for most families.
2. **Sticky-note wishes.** Everyone lists their top ten. Uncontested items go immediately; contested ones go to a draw.
3. **Silent auction with "estate dollars."** Each heir gets the same imaginary budget; high bid wins; nothing real changes hands.
4. **Appraise and offset.** Valuable items are priced; whoever takes one has it deducted from their cash share.
5. **Sell everything and split the money.** Least sentimental, least conflict. Sometimes the right answer.

Lawyers: when, what to ask, and how to keep the bill small

You probably need one if

- The estate may be insolvent (debts could exceed assets).
- There is real estate in more than one state (each state needs its own proceeding).
- Someone is contesting the will, or a family member is threatening to.
- There is a business, a farm, or rental property.
- The estate is large enough for federal or state estate tax.
- Your parent left no will and the heirs are not obvious.
- Your state requires an attorney for formal probate (a few do in practice).

You can probably do it yourself, with the clerk's help, if

- The estate qualifies for the small-estate procedure, or
- Most assets pass by beneficiary designation or joint ownership, the will is clear, the heirs agree, and the estate is solvent.

How lawyers charge for probate

MODEL	HOW IT WORKS	WHEN IT IS A GOOD DEAL
Hourly	\$200 to \$500 per hour depending on the market; you pay for what you use	Simple estates where you do the legwork and use the lawyer for filings and questions
Flat fee	One price for the whole probate, often \$2,500 to \$7,500 for uncomplicated estates	Predictability; ask exactly what is excluded
Percentage of the estate	Set by statute in some states (California, for example), otherwise negotiable	Rarely the cheapest. If it is statutory, ask whether the lawyer will accept less for a simple estate. Many will.
Limited-scope / consultation	Pay for an hour or two to review your plan and answer questions	The best value for a do-it-yourself executor. Bring this notebook.

Questions for the first call (free consultations are common)

- ☐ Do you handle probate in [county] regularly? How many a year?
- ☐ Based on what I've described, do I need formal probate, or does a simpler procedure apply?
- ☐ How do you charge, and what would a typical estate like this cost start to finish?
- ☐ What parts can I do myself to reduce the bill?
- ☐ Who will actually do the work: you or a paralegal, and at what rate?
- ☐ What deadlines apply to me in the next 60 days?
- ☐ Do you see anything in what I've told you that could make me personally liable?

Legal fees and CPA fees are paid by the estate, not by you, and are deductible administration expenses. Keep the invoices.

Getting paid back: compensation, expenses and the receipts rule

Every state allows an executor to be reimbursed for reasonable out-of-pocket expenses, and nearly every state allows the executor to be paid a fee. Most family executors waive the fee. Almost none should waive reimbursement.

Reimbursable, with a receipt

- Death certificates, court filing fees, certified copies, postage, publication costs
- Travel to handle estate business: mileage, flights, lodging if you live out of state
- Locksmith, cleaning, lawn, snow, repairs needed to protect the property
- Appraisals, storage, moving, shipping items to beneficiaries
- Funeral costs you advanced (a priority claim in most states)
- Utility and insurance bills you paid before the estate account existed
- Legal and accounting fees you advanced

The fee

Some states set it by statute as a percentage of the estate; others allow "reasonable compensation," often judged by hours and complexity. It is taxable income to you; an inheritance is not. If you are also a beneficiary, taking the fee can cost you more in tax than it earns. Ask the CPA before deciding. Whatever you decide, decide it in writing and tell the other beneficiaries.

The receipts rule. No receipt, no reimbursement. Beneficiaries can and do challenge unexplained expenses, and a court will side with them. Photograph every receipt the day you get it and keep the paper. The log below is your evidence.

EXPENSE AND MILEAGE LOG

DATE	WHAT / WHO PAID	AMOUNT	MILES	RECEIPT?	REIMBURSED (DATE)

90-day deadline calendar

Fill in the dates from your state's rules (Section 8) and the court's paperwork. The blanks are there because the notebook cannot know your state; the clerk can.

TARGET	ITEM	MY DATE	DONE
Day 1 to 3	Death certificates ordered; home secured; dependents and pets handled; will located		
Week 1	Insurer told; utilities kept; photos taken; call log started; SSA reporting confirmed		
By day 30 (many states)	Original will lodged with probate court		
Week 2 to 4	Assets sorted into A/B/C piles; small-estate check; petition filed		
On appointment	Letters received; EIN; estate account; Form 56; mail forwarding		
Per state rule	Notice to creditors published; known creditors mailed		
Per state rule (often 60 to 90 days)	Inventory filed with court		
Monthly, same day	Beneficiary update sent		
By day 60	Date-of-death values collected; appraisal ordered		
By day 90	Credit report reviewed; unclaimed property searched; CPA engaged; tax deadline sheet complete		
Creditor window closes	Claims reviewed, disputed or allowed; solvency confirmed		
Within 2 years of death	Social Security lump-sum death payment claimed (spouse or eligible child)		
April 15 after death	Final 1040 filed (and 1041 if needed)		
9 months after death	Form 706 and any state estate tax, if applicable		

OTHER DATES THE CLERK GAVE ME

Weekly check-in

Fifteen minutes, once a week, same day. Print one per week.

WEEK OF _____ DAYS SINCE DEATH _____

THREE THINGS THAT MUST HAPPEN THIS WEEK

WAITING ON (WHO, WHAT, SINCE WHEN)

MONEY THAT MOVED THIS WEEK (INTO OR OUT OF THE ESTATE ACCOUNT)

DEADLINES IN THE NEXT 30 DAYS

SOMETHING I DID NOT EXPECT

ONE THING I WILL DO FOR MYSELF THIS WEEK

Executors burn out around week six. The job is real work, it is unpaid for most, and it arrives at the worst possible time. Taking a week off from anything that is not on the deadline calendar is not neglect; it is how you finish.

Glossary

Administrator	The person the court appoints to settle an estate when there is no will, or the named executor cannot serve.
Beneficiary	Anyone named to receive something, in a will, a trust, or on an account form.
Bond	Insurance the court may require to protect the estate against executor misconduct. Wills often waive it.
Codicil	A signed amendment to a will.
Date-of-death value	What an asset was worth on the day of death. Used for the inventory, for taxes, and for the heirs' new tax basis.
Decedent	The person who died. Court paperwork uses this word constantly.
EIN	Employer Identification Number. The estate's tax ID, obtained free from the IRS. Required to open the estate account.
Fiduciary	Someone legally required to act in another's interest. Executors are fiduciaries for the beneficiaries.
Heir at law	The people who inherit under state law if there is no will. Usually spouse and children. Courts require notice to them even when there is a will.
Intestate	Dying without a valid will.
Letters	Letters Testamentary or Letters of Administration: the court's certificate that you have authority to act. What every bank asks for.
Personal representative	The modern, gender-neutral term for executor or administrator, used in many states' statutes.
Petition	The document that asks the court to open the estate and appoint you.
Probate	The court process that validates the will, appoints the representative, oversees payment of debts and distribution of the rest.
POD / TOD	Payable on death / transfer on death. Account designations that send an asset directly to a named person, outside probate.
Small estate affidavit	A sworn statement that lets heirs collect modest estates without full probate. Limits vary by state.
Step-up in basis	The tax rule that resets an inherited asset's cost basis to its date-of-death value, usually eliminating capital gains tax on growth during the decedent's life.
Successor trustee	The person who takes over a living trust when its creator dies. Similar duties to an executor, without the court.
Testator	The person who made the will.

After day 90

If you have worked through this notebook, you are ahead of most executors. The estate is open, protected, and mapped. What follows is slower and mostly clerical: waiting out the creditor window, filing returns, selling or transferring the house, and finally, the accounting and the distribution.

The shape of months four to sixteen

- **Months 4 to 6:** creditor window closes; claims allowed or disputed; house sold or deeded; tax documents arrive.
- **Months 6 to 12:** returns filed; estate account reconciled; reserves set aside for any final tax; partial distributions possible in some states with court approval.
- **Months 12 to 16:** final accounting prepared and sent to beneficiaries or filed with the court; receipts and releases signed; final distribution; estate account closed; court discharges you.

What you will need that this notebook does not hold

A ledger. From here on, every transaction in the estate account needs to be categorized (income, expense, distribution), reconciled monthly, and presentable as a final accounting. A spreadsheet with the right columns is enough for most estates. The companion *Estate Ledger* from The Executor's Desk is built for exactly that, in Google Sheets, with the inventory, the running accounting and the distribution schedule linked together. If you bought this notebook directly, you have the link in your receipt email. If you bought it on Etsy, you can find it at the address below.

The free part

The one-page *First 72 Hours* checklist is free to anyone who needs it. If you know someone who has just been handed this job, send them there rather than lending them this notebook; they can start tonight.

THE EXECUTOR'S DESK

theexecutorsdesk.com/72 — the free 72-hour checklist

theexecutorsdesk.com/ledger — the Estate Ledger for months four to sixteen

help@theexecutorsdesk.com — corrections, questions, and what you wish this notebook had included. Every reply is read and the notebook is updated from them.

Legal notice. This notebook provides general information about the process of settling an estate in the United States. It is not legal, tax, or financial advice and does not create an attorney-client relationship. Laws and dollar thresholds vary by state and change over time; figures in this notebook are starting points to be verified with the probate court in the county where the decedent lived or with a licensed attorney. The Executor's Desk is not a law firm. Where this notebook and your state's rules or a court order differ, follow the court.

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